

May 29, 2026, Civil Law & Motion Tentative Rulings

1. CU0001580 Adrienne Schram vs. Bradley Shipley, et al.

The Court rules as follows with respect to the May 14, 2026, objections of Plaintiff/Cross-Defendant Schram and Cross-Defendant/Cross-Complainant Karwowski to the May 24, 2026, proposed judgment.

Objection to Paragraph 11: The objection is sustained. Shipley is entitled to a money judgment for damages, alone, without an order to pay. Shipley's request for post-judgment interest is granted. The money judgment for damages shall be stated in terms of an unpaid principal amount, together with post-judgment interest at the rate of 10% per year until paid. *See* Code Civ. Proc. § 685.010(a)(1).

Objection to Paragraph 12: The objection is sustained. The judgment should reflect that: A copy of the Lis Pendens was filed in this case on September 3, 2024; reflects recorder information as Document 2024001406, recorded August 2, 2024; said Lis Pendens is expunged and said Lis Pendens no longer has any legal effect.

Objection to Paragraph 14: The objection is overruled. The final ruling following bench trial was as follows:

On Schram's Complaint, judgment for Shipley and against Schram as to Counts One and Two. On Karwowski's Cross-Complaint, judgment for Shipley and against Karwowski as to Counts One and Two. On Shipley's Cross-Complaint: judgment for Shipley and against Karwowski as to Counts One, Two, Three and Six; judgment for Shipley and against Schram as to Counts One, Three and Six; judgment for Schram and against Shipley as to Counts Two, Four and Five; judgment for Karwowski and against Shipley as to Counts Four and Five.

4/14/26 Memorandum Decision and Order, 7:15-18.

Easement rights were the clear gravamen of this case. Shipley prevailed in connection with *all* such claims, *i.e.*, Schram's Complaint for Prescriptive Easement (Claim One) and Injunctive Relief (Claim Two); Shipley's Cross-Claims to Quiet Title (Claim One) and for Declaratory Relief (Claim Six); Karwowski's Cross-Claims for Adverse Possession (Claim One) and for Declaratory Relief (Claim Two). *Id.* at 2:2-5:15.

Shipley prevailed against Karwowski, but not Schram, with respect to Cross-Complainant Shipley's Claims for Nuisance (Claim Two). *Id.* at 5:17-6:10.

Shipley prevailed against Karwowski and Schram with respect to Cross-Complainant Shipley's Claims for Trespass (Claim Three). *Id.* at 6:11-27.

Shipley did not prevail against either Karwowski or Schram with respect to Cross-Complainant Shipley's Claims for Conversion (Claim Four) and Trespass to Chattels (Claim Five). *Id.* at 7:1-13.

Under the totality of these circumstances, Shipley was the prevailing party against both Karwoski and Schram. See Code of Civil Procedure section 1032(4).

2. CU0002107 Sheng Wang Chen vs. Federick Boey, et al.

Plaintiff/Cross-Defendant's March 3, 2026, motion for attorney's fees is granted in part.

Jurisdiction to Consider Attorney's Fees Given Pendency of Appeal

Defendants/Cross-Complainants "preserve" their position that this Court is divested of jurisdiction to consider the motion for attorney's fees given the pendency of an appeal of the Court's December 12, 2025, order granting Plaintiff/Cross-Defendant's motion to strike in part. The Court is not persuaded.

First, Defendants/Cross-Complainants filed a May 14, 2026, request for a stay, but then did not appear on the scheduled hearing date. The matter was removed from calendar without prejudice. See 5/15/26 Minute Order. No motion for a stay was duly filed by defendants thereafter and none is pending.

In any event, no stay would be required.

As a general rule (the automatic stay rule), the perfecting of an appeal automatically stays proceedings in the trial court both upon the judgment or order appealed from, and upon the matters embraced therein or affected thereby, including enforcement of the judgment or order. See generally Eisenberg et al., Cal. Practice Guide: Civil Appeals and Writs (The Rutter Group 1999) ¶¶ 7:1 to 7:2, p. 7-1. The automatic stay rule is codified in section 916, subdivision (a) which provides in part: "*Except as provided in Sections 917.1 to 917.9, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order*" (Italics added.)

The purpose of the automatic stay rule is "to protect the appellate court's jurisdiction by preserving the status quo until the appeal is decided. The rule prevents the trial court from rendering an appeal futile by altering the appealed judgment or order by conducting other proceedings that may affect it. [Citation.]" *Elsea v. Saberi* (1992) 4 Cal.App.4th 625, 629.

Dowling v. Zimmerman (2001) 85 Cal.App.4th 1400, 1428 (parallel citations and parentheses omitted).

Here, an award of attorney's fees will not in any way render the appeal futile or affect the appealed judgment. Of course, should the Court of Appeal disagree with all or part of the Court's anti-SLAPP decision itself, the Court may be required to reexamine the question of who